REQUEST FOR PROPOSAL

RFP COVER SHEET

Administrative Information:

Title of RFP:	Ombudsman Case Management System	**RFP Number:**	RFP1112297290
Agency:	Iowa Department of Aging		
State seeks to purchase:	Ombudsman Case Management System	**Available to Political Subdivisions?**	No
Number of years of the initial term of the contract:	1 year	**Number of possible annual extensions:**	5
State Issuing Officer: Laurie Hoing, CPPB			
Phone: 515-281-0656 **Fax**: 515-725-0137 **E-mail**: laurie.hoing@iowa.gov			
Mailing Address: Iowa Department of Administrative Services Hoover State Office Building, Level A 1305 East Walnut Street Des Moines, IA 50319-0105			

PROCUREMENT TIMETABLE—Event or Action:	**Date/Time (Central Time):**
State Posts Notice of RFP on TSB website	February 1, 2012
State Issues RFP	February 6, 2012
RFP written questions, requests for clarification, and suggested changes from Contractors due:	February 13, 2012 3:00 p.m.
RFP written responses to questions, requests for clarification due:	February 20, 2012 3:00 p.m.
Proposals Due	February 29, 2012 3:00 p.m.

Relevant Websites:	**Web-address:**
Internet website where Addenda to this RFP will be posted:	http://bidopportunities.iowa.gov/
Internet website where contract terms and conditions are posted:	http://das.gse.iowa.gov/terms_services.pdf

Number of Copies of Proposals Required to be Submitted	1 original, 1 public copy (if submitting), and 1 electronic copy on CD or USB drive
Firm Proposal Terms Per Section 3.2.13, the minimum Number of Days following the deadline for submitting proposals that the Contractor guarantees all proposal terms, including price, will remain firm:	120 Days

An MS Word version of this PDF file is available upon request to the Issuing Officer

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SECTION 1
INTRODUCTION

1.1 Purpose

The purpose of this Request for Proposals (RFP) is to solicit proposals from Responsible Contractors to provide the goods and/or services identified on the RFP cover sheet and further described in Section 4 of this RFP to the Agency identified on the RFP cover sheet. The Agency intends to award a Contract, and the Agency, in its sole discretion, may extend the Contract for up to the number of annual extensions identified on the RFP cover sheet.

1.2 Definitions

For the purposes of this RFP and the resulting contract, the following terms shall mean:

1.2.1 "Agency" means the agency identified on the RFP cover sheet that is issuing the RFP and any other agency that purchases from the Contract.

1.2.2 "AoA" means Administration on Aging

1.2.3 "Contract" means the contract(s) entered into with the successful Contractor(s) as described in Section 6.1.

1.2.4 "Contractor" means a vendor submitting Proposals in response to this RFP.

1.2.5 "NORS" means National Ombudsman Reporting System. Data and Reports on Long-Term Care Ombudsman programs reported to the Administration on Aging.

1.2.6 **"**ORT" means Ombudsman Reporting Tool

1.2.7 "Proposal" means the Contractor's proposal submitted in response to the RFP

1.2.8 "Responsible Contractor" means a Contractor that has the capability in all respects to perform the requirements of the Contract. In determining whether a Contractor is a Responsible Contractor, the Agency may consider various factors including, but not limited to, the Contractor's competence and qualifications to provide the goods or services requested, the Contractor's integrity and reliability, the past performance of the Contractor and the best interest of the Agency and the State.

1.2.9 "Responsive Proposal" means a Proposal that complies with the material provisions of this RFP.

1.2.10 "RFP" means this Request for Proposals and any attachments, exhibits, schedules or addenda hereto.

1.2.11 "State" means the State of Iowa, the Agency identified on the Contract Declarations & Execution Page(s), and all state agencies, boards, and commissions, and any political subdivisions making purchases from the Contract as permitted by this RFP.

1.3 Overview of the RFP Process

Contractors will be required to submit their Proposals in hardcopy and on CD-ROM. It is the Agency's intention to evaluate Proposals from all Responsible Contractors that submit timely Responsive Proposals, and award the Contract(s) in accordance with Section 5, Evaluation and Selection.

1.4 Background Information

This RFP is designed to provide Contractors with the information necessary for the preparation of competitive Proposals. The RFP process is for the Agency's benefit and is intended to provide the Agency with competitive information to assist in the selection process. It is not intended to

be comprehensive. Each Contractor is responsible for determining all factors necessary for submission of a comprehensive Proposal.

The Office of the State Long-Term Care Ombudsman, Iowa Department on Aging is in need of a Long-Term Care Ombudsman data entry program. This internet-based system will be used for entering cases and program activities tracking narratives, associated times and federal reporting information required for the National Ombudsman Reporting System data (NORS). This system must provide a variety of reports based upon data entry from two state office employees and eight local offices-all are state employees but working from remote locations. In addition, the system will need to auto-tabulate and auto-populate the Ombudsman Reporting Tool (ORT) the AoA mandated annual report.

In Iowa, information is entered into the current system as it is received. The current system being used is Ombudsmanager v2.0 (2.0.0.40738). This system has been in use since 7/1/1999, beginning with cases and program activities were added 6/2/2000. As of the date of the issuance of this RFP, the current number of cases is 8,101. The number of Program Activities is 36,621. Cases and activities are added daily. The local long-term care ombudsmen manually performs data entry based on either handwritten notes or copy-paste-scan from e-mails, scans, or mail received. When a call is received in the Des Moines office and the local ombudsman is not available, the Des Moines staff enters the information and creates either a pending activity or a case due for review.

Reports used by the Des Moines staff must be accurate and in real time. Reports most frequently used are a daily list of new cases opened, cases due for review, time spent on cases, and ombudsman program activities including type, instances, driving time and time spent. Since all local ombudsmen are state employees, we must have a system where we have accurate, real time reports to check on work pending or completed.

We are seeking a company with a vendor commitment to understand the role of the state and local ombudsmen, knowledge of NORS requirements and ORT, unduplicated time tracking for accurate NORS results, ability to customize the database to reflect Iowa program needs, global search functions for rapid selection of data, the ability to scan, attach and print documents and the ability to customize the program and reporting to meet the needs of the Iowa long-term care ombudsman program.

SECTION 2
ADMINISTRATIVE INFORMATION

2.1 Issuing Officer

The Issuing Officer identified in the RFP cover sheet is the sole point of contact regarding the RFP from the date of issuance until a Notice of Intent to Award the Contract is issued.

2.2 Restriction on Communication

From the issue date of this RFP until a Notice of Intent to Award the Contract is issued, Contractors may contact only the Issuing Officer. The Issuing Officer will respond only to written questions regarding the procurement process. Questions related to the interpretation of this RFP must be submitted as provided in Section 2. Oral questions related to the interpretation of this RFP will not be accepted. Contractors may be disqualified if they contact any State employee other than the Issuing Officer about the RFP except that Contractors may contact the State Targeted Small Business Office on issues related to the preference for Targeted Small Businesses.

2.3 Downloading the RFP from the Internet

The RFP and any addenda to the RFP will be posted at http://bidopportunities.iowa.gov/. The Contractor is advised to check the website periodically for Addenda to this RFP, particularly if the Contractor downloaded the RFP from the Internet as the Contractor may not automatically receive addenda. It is the Contractor's sole responsibility to check daily for addenda to posted documents.

2.4 Procurement Timetable

The dates provided in the procurement timetable on the RFP cover sheet are provided for informational and planning purposes. The Agency reserves the right to change the dates. If the Agency changes any of the deadlines for Contractor submissions, the Agency will issue an addendum to the RFP.

2.5 Questions, Requests for Clarification, and Suggested Changes

Contractors are invited to submit written questions and requests for clarifications regarding the RFP. Contractors may also submit suggestions for changes to the requirements of this RFP. The questions, requests for clarifications, or suggestions must be in writing and received by the Issuing Officer before the date and time listed on the RFP cover sheet. Oral questions will not be permitted. If the questions, requests for clarifications, or suggestions pertain to a specific section of the RFP, Contractor shall reference the page and section number(s). The Agency will send written responses to questions, requests for clarifications, or suggestions will be received from Contractors on or before the date listed on the RFP cover sheet. The Agency's written responses will become an addendum to the RFP. If the Agency decides to adopt a suggestion that modifies the RFP, the Agency will issue an addendum to the RFP.

The Agency assumes no responsibility for oral representations made by its officers or employees unless such representations are confirmed in writing and incorporated into the RFP through an addendum.

2.6 Amendment to the RFP

The Agency reserves the right to amend the RFP at any time using an addendum. The Contractor shall acknowledge receipt of all addenda in its Proposal. If the Agency issues an addendum after the due date for receipt of Proposals, the Agency may, in its sole discretion, allow Contractors to amend their Proposals in response to the addendum.

2.7 Amendment and Withdrawal of Proposal

The Contractor may amend or withdraw and resubmit its Proposal at any time before the Proposals are due. The amendment must be in writing, signed by the Contractor and received by the time set for the receipt of Proposals. Electronic mail and faxed amendments will not be accepted. Contractors must notify the Issuing Officer in writing prior to the due date for Proposals if they wish to completely withdraw their Proposals.

2.8 Submission of Proposals

The Agency must receive the Proposal at the Issuing Officer's address identified on the RFP cover sheet before the "Proposals Due" date listed on the RFP cover sheet. This is a mandatory requirement and will not be waived by the Agency. Any Proposal received after this deadline will be rejected and returned unopened to the Contractor. Contractors mailing Proposals must allow ample mail delivery time to ensure timely receipt of their Proposals. It is the Contractor's responsibility to ensure that the Proposal is received prior to the deadline. Postmarking by the due date will not substitute for actual receipt of the Proposal. Electronic mail and faxed Proposals will not be accepted.

Contractors must furnish all information necessary to enable the Agency to evaluate the Proposal. Proposals that fail to meet the mandatory requirements of the RFP will be rejected. Oral information provided by the Contractor shall not be considered part of the Contractor's Proposal unless it is reduced to writing.

2.9 Proposal Opening

The Agency will open Proposals after the deadline for submission of Proposals has passed. The Proposals will remain confidential until the Evaluation Committee has reviewed all of the Proposals submitted in response to this RFP and the Agency has issued a Notice of Intent to Award a Contract. See Iowa Code Section 72.3. However, the names of Contractors who submitted timely Proposals will be publicly available after the Proposal opening. The announcement of Contractors who timely submitted Proposals does not mean that an individual Proposal has been deemed technically compliant or accepted for evaluation.

2.10 Costs of Preparing the Proposal

The costs of preparation and delivery of the Proposal are solely the responsibility of the Contractor.

2.11 No commitment to Contract

The Agency reserves the right to reject any or all Proposals received in response to this RFP at any time prior to the execution of the Contract. Issuance of this RFP in no way constitutes a commitment by the Agency to award a contract.

2.12 Rejection of Proposals

The Agency may reject outright and not evaluate a Proposal for reasons including without limitation:

2.12.1 The Contractor fails to deliver the cost proposal in a separately sealed envelope.

2.12.2 The Contractor acknowledges that a mandatory requirement of the RFP cannot be met.

2.12.3 The Contractor's Proposal changes a material requirement of the RFP or the Proposal is not compliant with the mandatory requirements of the RFP.

2.12.4 The Contractor's Proposal limits the rights of the Agency.

2.12.5 The Contractor fails to include information necessary to substantiate that it will be able to meet a requirement of the RFP as provided in Section 3 of this RFP.

2.12.6 The Contractor fails to timely respond to the Agency's request for information, documents, or references.

2.12.7 The Contractor fails to include Proposal Security, if required.

2.12.8 The Contractor fails to include any signature, certification, authorization, stipulation, disclosure or guarantee as provided in Section 3 of this RFP.

2.12.9 The Contractor presents the information requested by this RFP in a format inconsistent with the instructions of the RFP or otherwise fails to comply with the requirements of this RFP.

2.12.10 The Contractor initiates unauthorized contact regarding the RFP with state employees.

2.12.11 The Contractor provides misleading or inaccurate responses.

2.12.12 The Contractor's Proposal is materially unbalanced.

2.12.13 There is insufficient evidence (including evidence submitted by the Contractor and evidence obtained by the Agency from other sources) to satisfy the Agency that the Contractor is a Responsive Contractor.

2.12.14 The Contractor alters the language in Attachment 1, Certification Letter or Attachment 2, Authorization to Release Information letter.

2.13 Nonmaterial Variances

The Agency reserves the right to waive or permit cure of nonmaterial variances in the Proposal if, in the judgment of the Agency, it is in the State's best interest to do so. Nonmaterial variances include but are not limited to: minor failures to comply that do not affect overall responsiveness, that are merely a matter of form or format, that do not change the relative standing or otherwise prejudice other Contractors, that do not change the meaning or scope of the RFP, or that do not reflect a material change in the requirements of the RFP. In the event the Agency waives or permits cure of nonmaterial variances, such waiver or cure will not modify the RFP requirements or excuse the Contractor from full compliance with RFP specifications or other Contract requirements if the Contractor is awarded the Contract. The determination of materiality is in the sole discretion of the Agency.

2.14 Reference Checks

The Agency reserves the right to contact any reference to assist in the evaluation of the Proposal, to verify information contained in the Proposal and to discuss the Contractor's qualifications and the qualifications of any subcontractor identified in the Proposal. References will be scored and evaluated.

2.15 Information from Other Sources

The Agency reserves the right to obtain and consider information from other sources concerning a Contractor, such as the Contractor's capability and performance under other

contracts, the qualifications of any subcontractor identified in the Proposal, the Contractor's financial stability, past or pending litigation, and other publicly available information.

2.16 Verification of Proposal Contents

The content of a Proposal submitted by a Contractor is subject to verification. If the Agency determines in its sole discretion that the content is in any way misleading or inaccurate, the Agency may reject the Proposal.

2.17 Proposal Clarification Process

The Agency reserves the right to contact a Contractor after the submission of Proposals for the purpose of clarifying a Proposal. This contact may include written questions, interviews, site visits, a review of past performance if the Contractor has provided goods and/or services to the State or any other political subdivision wherever located, or requests for corrective pages in the Contractor's Proposal. The Agency will not consider information received from or through Contractor if the information materially alters the content of the Proposal or the type of goods and/or services the Contractor is offering to the Agency. An individual authorized to legally bind the Contractor shall sign responses to any request for clarification. Responses shall be submitted to the Agency within the time specified in the Agency's request. Failure to comply with requests for additional information may result in rejection of the Proposal.

2.18 Disposition of Proposals

All Proposals become the property of the State and shall not be returned to the Contractor. Once the Agency issues a Notice of Intent to Award the Contract, the contents of all Proposals will be in the public domain and be available for inspection by interested parties, except for information for which Contractor properly requests confidential treatment or according to exceptions provided in Iowa Code Chapter 22 or other applicable law.

2.19 Public Records and Requests for Confidential Treatment

The Agency will treat all information submitted by a Contractor as public records unless the Contractor properly requests that specific parts of the Proposal be treated as confidential at the time of submitting the Proposal. The Agency's release of public records is governed by Iowa Code Chapter 22. Contractors are encouraged to familiarize themselves with Chapter 22 before submitting a Proposal. The Agency will copy and produce public records as required to comply with Chapter 22 or other applicable law.

Any request for confidential treatment of specific information must be included in the transmittal letter with the Contractor's Proposal. In addition, the Contractor must enumerate the specific grounds in Iowa Code Chapter 22 or other applicable law which support treatment of the material as confidential and explain why disclosure is not in the best interest of the public. Pricing information cannot be considered confidential information. The request for confidential treatment of information must also include the name, address, and telephone number of the person authorized by the Contractor to respond to any inquiries by the Agency concerning the confidential status of the materials.

Any Proposal submitted which contains information for which Contractor is requesting Confidential treatment must be conspicuously marked by the Contractor on the outside as containing confidential information, and each page upon which confidential information appears must be conspicuously marked as containing confidential information. Failure to

properly identify specific information as confidential shall relieve Agency or State personnel from any responsibility if confidential information is viewed by the public or a competitor, or is in any way released. If Contractor identifies its entire Proposal as confidential, the Agency may reject the Proposal as non-responsive.

If the Contractor designates any portion of its Proposal as confidential, the Contractor must submit a copy labeled as "Public Copy" from which the confidential information has been excised. This excised copy is in addition to the number of copies requested in Section 3 of this RFP. The confidential material must be excised in such a way as to allow the public to determine the general nature of the material removed and to retain as much of the Proposal as possible.

If Agency receives a request for information that includes information Contractor has marked as confidential, Agency will give written notice to the Contractor at least seven calendar days prior to the release of the information to allow the Contractor to seek injunctive relief pursuant to Section 22.8 of the Iowa Code. After seven calendar days, the Agency will release the information marked confidential unless a court of competent jurisdiction determines the information is confidential under Iowa Code Chapter 22 or other applicable law.

The Contractor's failure to request confidential treatment of material will be deemed a waiver of any right to confidentiality the Contractor may have had.

2.20 Copyright Permission

By submitting a Proposal, the Contractor agrees that the Agency may copy the Proposal for purposes of facilitating the evaluation of the Proposal or to respond to requests for public records. By submitting a Proposal, the Contractor consents to such copying and warrants that such copying will not violate the rights of any third party. The Agency shall have the right to use ideas or adaptations of ideas that are presented in Proposals.

2.21 Release of Claims

By submitting a Proposal, the Contractor agrees that it will not bring any claim or cause of action against the Agency based on any misunderstanding concerning the information provided in the RFP or concerning the Agency's failure, negligent or otherwise, to provide the Contractor with pertinent information in this RFP.

2.22 Contractor Presentations

Contractors may be required to make a webinar presentation. The determination as to need for presentations, order, and schedule of the presentations is at the sole discretion of the Agency. The presentation may include slides, graphics and other media selected by the Contractor to illustrate the Contractor's Proposal. The presentation shall not materially change the information contained in the Proposal. The Technical Evaluation (5.3) & Contractor Background, Experience and References (3.2) points will be added together and the top two highest scoring Proposals will be invited to do a Contractor Presentation. The Agency reserves the right to invite Contractors within 10% of the second highest total score to participate in a Contractor Presentation.

2.23 Evaluation of Proposals Submitted

Proposals that are timely submitted and are not rejected will be reviewed in accordance with Section 5 of the RFP. The Agency will not necessarily award a contract resulting from this RFP

to the Contractor offering the lowest cost. Instead, the Agency will award the Contract(s) to the Responsible Contractor(s) whose Responsive Proposal the agency believes will provide the best value to the Agency and the State.

2.24 Award Notice and Acceptance Period

Notice of Intent to Award the Contract(s) will be sent to all Contractors submitting a timely Proposal and may be posted at the website shown on the RFP cover sheet. Negotiation and execution of the Contract(s) shall be completed no later than thirty (30) days from the date of the Notice of Intent to Award or such other time as designated by Agency. If the successful Contractor fails to negotiate and deliver an executed Contract by that date, the Agency, in its sole discretion, may cancel the award and award the Contract to the remaining Contractor the Agency believes will provide the best value to the State.

2.25 No Contract Rights until Execution

No Contractor shall acquire any legal or equitable rights regarding the Contract unless and until the Contract has been fully executed by the successful Contractor and the Agency.

2.26 Choice of Law and Forum

This RFP and the Contract shall be governed by the laws of the State of Iowa. Changes in applicable laws and rules may affect the award process or the Contract. Contractors are responsible for ascertaining pertinent legal requirements and restrictions. Any and all litigation or actions commenced in connection with this RFP shall be brought in the appropriate Iowa forum.

2.27 Restrictions on Gifts and Activities

Iowa Code Chapter 68B restricts gifts which may be given or received by State employees and requires certain individuals to disclose information concerning their activities with State government. Contractors are responsible to determine the applicability of this Chapter 68B to their activities and to comply with its requirements. In addition, pursuant to Iowa Code section 722.1, it is a felony offense to bribe or attempt to bribe a public official.

2.28 Appeals

A vendor whose proposal has been timely filed and who is aggrieved by the award of the department may appeal the decision by filing a written notice of appeal (in accordance with 11—Chapter 105.20, Iowa Administrative Code) to: The Director of the Department of Administrative Services, Hoover State Office Building, Des Moines, Iowa 50319-0104 and a copy to the issuing officer. The notice must be filed within five days of the date of the Intent to Award notice issued by the Department, exclusive of Saturdays, Sundays, and legal state holidays. The written notice may be filed by fax transmission to 515.725.0137. The notice of appeal must clearly and fully identify all issues being contested by reference to the page, section and line number(s) of the RFP and / or the notice of Intent to Award. A notice of appeal may not stay negotiations with the apparent successful vendor.

2.29 Payment Terms

Per *Iowa Code § 8A.514* the State of Iowa is allowed sixty (60) days to pay an invoice submitted by a vendor.

SECTION 3

FORM AND CONTENT OF PROPOSALS

3.1 Instructions

These instructions prescribe the format and content of the Proposal. They are designed to facilitate a uniform review process. Failure to adhere to the Proposal format may result in the rejection of the Proposal.

3.1.1 The Proposal shall be typewritten on 8.5" x 11" paper and sent in a sealed envelope with an electronic copy on CD.

The Proposal shall be divided into two parts: (1) the Technical Proposal and (2) the Cost Proposal. The Technical Proposal and the Cost Proposal shall be labeled as such and placed in a separate sealed envelope. The envelopes shall be numbered in the following fashion: 1 of 2, 2 of 2, etc. The envelopes shall be labeled with the following information:

RFP Number: RFP1112297290
RFP Title: Ombudsman Case Management System
Laurie Hoing, CPPB
Iowa Department of Administrative Services
Hoover State Office Building, Level A
1305 East Walnut Street
Des Moines, IA 50319-0105

[Contractor's Name and Address]

The Agency shall not be responsible for misdirected packages or premature opening of Proposals if a Proposal is not properly labeled.

3.1.2 An original and one copy of both parts of the Proposal, each in a sealed envelope, shall be timely submitted to the Issuing Officer.
Example:

Technical Envelope(s) Contains(s):	Cost Proposal Envelope Contains:
Original Proposal	One copy of the Cost Proposal
Technical Proposal on CD	Cost Proposal on CD
Public Copy if submitted	
Electronic Public Copy on same CD if submitted	

3.1.3 If the Contractor designates any information in its Proposal as confidential pursuant to Section 2, the Contractor must also submit one (1) copy of the Proposal from which confidential information has been excised as provided in Section 2 and which is marked “Public Copy”.

3.1.4 Proposals shall not contain promotional or display materials.

3.1.5 Attachments shall be referenced in the Proposal.

3.1.6 If a Contractor proposes more than one solution to the RFP requirements, each shall be labeled and submitted separately and each will be evaluated separately.

3.2 Technical Proposal

The following documents and responses shall be included in the Technical Proposal in the order given below:

Supplement 1 - Transmittal Letter (Required)

An individual authorized to legally bind the Contractor shall sign the transmittal letter. The letter shall include the Contractor's mailing address, electronic mail address, fax number, and telephone number. Any request for confidential treatment of information shall be included in the transmittal letter in accordance with the provisions of Section 2.

Supplement 2 - Executive Summary

The Contractor shall prepare an executive summary and overview of the goods and/or services it is offering, including all of the following information:

a. Statements that demonstrate that the Contractor has read, understands and agrees with the terms and conditions of the RFP including the contract provisions in Section 6.
b. An overview of the Contractor's plans for complying with the requirements of this RFP.
c. Any other summary information the Contractor deems to be pertinent.

Supplement 3 - Specifications and Technical Requirements

The Contractor shall answer whether or not it will comply with each requirement in Section 4 of the RFP. Where the context requires more than a yes or no answer or the specific requirement so indicates, Contractor shall explain how it will comply with the requirement in Supplement 13. Merely repeating the Section 4 requirements may be considered non-responsive and result in the rejection of the Proposal. Proposals must identify any deviations from the requirements of the RFP or requirements the Contractor cannot satisfy. If the Contractor deviates from or cannot satisfy the requirement(s) of this section, the Agency may reject the Proposal.

Supplement 4 - Contractor Background Information

a. The Contractor shall provide the following general background information:
b. Does your state have a preference for instate Contractors? Yes or No. If yes, please include the details of the preference.
c. Name, address, telephone number, fax number and e-mail address of the Contractor including all d/b/a's or assumed names or other operating names of the Contractor and any local addresses and phone numbers.
d. Form of business entity, i.e., corporation, partnership, proprietorship, or LLC.
e. State of incorporation, state of formation, or state of organization.
f. The location(s) including address and telephone numbers of the offices and other facilities that relate to the Contractor's performance under the terms of this RFP.
g. Number of employees.
h. Type of business.
i. Name, address, e-mail address and telephone number of the Contractor's representative to contact regarding all contractual and technical matters concerning the Proposal.

j. Name, contact information and qualifications of any subcontractors who will be involved with this project the Contractor proposes to use and the nature of the goods and/or services the subcontractor would perform.
k. Contractor's accounting firm.
l. Awarded Contractor will be required to register to do business in Iowa before payments can be made.
m. For contractor registration documents, go to: http://das.gse.iowa.gov/procurement/vendor_reg.html

Supplement 5 - Experience

The Contractor must provide the following information regarding its experience:

a. Number of years in business.
b. Number of years experience with providing the types of goods and/or services sought by the RFP.
c. The level of technical experience in providing the types of goods and/or services sought by the RFP.
d. A list of all goods and/or services similar to those sought by this RFP that the Contractor has provided to other businesses or governmental entities.
e. Letters of reference from three (3) previous customers or clients knowledgeable of the Contractor's performance in providing goods and/or services similar to the goods and/or services described in this RFP and a contact person including e-mail address and telephone number for each reference.

Supplement 6 - Financial Information

The Contractor must provide the following financial information:

a. Audited financial statements for the last 3 years.
b. A minimum of three (3) financial references.

Supplement 7 - Termination, Litigation, and Debarment

The Contractor must provide the following information for the past five (5) years:

a. Has the Contractor had a contract for goods and/or services terminated for any reason? If so, provide full details regarding the termination.
b. Describe any damages or penalties assessed against or dispute resolution settlements entered into by Contractor under any existing or past contracts for goods and/or services. Provide full details regarding the circumstances, including dollar amount of damages, penalties and settlement payments.
c. Describe any order, judgment or decree of any Federal or State authority barring, suspending or otherwise limiting the right of the Contractor to engage in any business, practice or activity.
d. A list and summary of all litigation or threatened litigation, administrative or regulatory proceedings, or similar matters to which the Contractor or its officers have been a party.
e. Any irregularities discovered in any of the accounts maintained by the Contractor on behalf of others. Describe the circumstances and disposition of the irregularities. Failure to disclose these matters may result in rejection of the Proposal or termination of any subsequent Contract. The above disclosures are a continuing requirement of the Contractor. Contractor shall provide written notification to the Agency of any such matter commencing or occurring after submission of a Proposal, and with respect to the successful Contractor, following execution of the Contract.

Supplement 8 - Criminal History and Background Investigation
The Contractor hereby explicitly authorizes the Agency to conduct criminal history and/or other background investigation(s) of the Contractor, its officers, directors, shareholders, partners, and managerial and supervisory personnel who will be involved in the performance of the Contract.

Supplement 9 - Acceptance of Terms and Conditions
The Contractor shall specifically agree that by submitting the Proposal, the Contractor is accepting all terms and conditions stated in the RFP. However, if the Contractor objects to any term or condition, the Contractor must specifically refer to the RFP page and section number and provide the reason for the objection. Objections or responses that materially alter the RFP may be deemed non-responsive and result in rejection of the Proposal.

Supplement 10 - Certification Letter
The Contractor shall sign and submit with the Proposal, the document included as Attachment #1 (Certification Letter) in which the Contractor shall make the certifications included in Attachment #1.

Supplement 11 - Authorization to Release Information
The Contractor shall sign and submit with the Proposal the document included as Attachment #2 (Authorization to Release Information Letter) in which the Contractor authorizes the release of information to the Agency.

Supplement 12 - Firm Proposal Terms
The Contractor shall guarantee in writing the goods and/or services offered in the Proposal are currently available and that all Proposal terms, including price, will remain firm 120 days following the deadline for submitting Proposals.

Supplement 13 – Proposed Solution
Provide detailed description of proposed solution to include any and all available and anticipated features and abilities of the system.

Supplement 14 – Implementation Plan
The Contractor shall provide recommended implementation strategy including on-site coordination and support services, best practice consulting options, and professional services. Identify any third party vendors involved in your implementation strategy and describe these relationships. Describe the skills and time required by State of Iowa personnel for initial installation and implementation of the proposed system (on-premise solution). Provide an estimate of State of Iowa staff time required to complete the installation. Describe the documentation provided with the product along with applicable costs for any additional documentation. Please provide an implementation schedule, based on weekly milestones (not dates). Show periods of performance and tasks to be performed by State of Iowa and Contractor.

3.3 Cost Proposal

Provide complete, itemized pricing for the proposed solution, see Attachment 4. The Contractor shall provide its cost proposal in a separately sealed envelope for the proposed goods and/or services. Cost proposals must include the following:

a. Licensing costs for all six years of the contract
b. User costs (seat/site) - Indicate cost per user plus any seat/site licenses. Iowa currently has eight local ombudsmen and two office staff. Include cost changes for additional users (above the current ten) who are state employees. Include cost if contract entities are designated as local ombudsman programs and local ombudsmen are not considered state employees (Cost for current ten users and cost if additional ombudsmen are added).
c. Migration costs
d. Customization costs
e. Annual user support costs (for all six years of the contract)
f. Training costs
g. All other costs associated with use of this program
h. Projected future cost increases (see attachment 4).

SECTION 4
SPECIFICATIONS AND TECHNICAL REQUIREMENTS

4.1 Overview

The successful Contractor shall provide the goods and/or services to Agency and other agencies using the Contract in accordance with the specifications and technical requirements as provided in this Section. The Contractor shall address each requirement in this Section and indicate whether or not it will comply with the requirement. If the context requires more than a yes or no answer or the section specifically indicates, Contractor shall explain how it will comply with the requirement. Proposals must address each requirement. Merely repeating the requirements may be considered non-responsive and may disqualify the Contractor. Proposals must identify any deviations from the requirements of this RFP or requirements the Contractor cannot satisfy. If the Contractor deviates from or cannot satisfy the requirement(s) of this section, the Agency may reject the Proposal.

There are three types of requirement addressed in these specifications:

- Mandatory (pass/fail) Requirements: A Contractor must be able to satisfy all these requirements to be deemed a Responsible Contractor.
- Scored Mandatory Technical Requirements: Proposals which pass the Mandatory Requirements review will be reviewed by the evaluation committee and scored in accordance with the evaluation criteria described in Section 5. Compliance with the Scored Technical Requirements is also mandatory.
- Optional Scored Requirements: These are scored non-mandatory requirements the Agency may be interested in having.

4.2 Mandatory (Pass/Fail) Technical Requirements

All items listed in this section are Mandatory Requirements. A pass/fail evaluation will be utilized for these requirements. Contractors must indicate either **"yes" or "no"** to each requirement in their Proposals. By indicating "yes" a Contractor agrees that it shall comply with that requirement throughout the full term of the Contract, if the Contractor is successful. In addition, if specified by the requirements or if the context otherwise requires, the Contractor shall provide references and/or supportive materials to verify the Contractor's compliance with the requirement. The Agency shall have the right to determine whether the supportive information and materials submitted by the Contractor demonstrate the Contractor will be able to comply with the Mandatory Requirements. If the Agency determines the responses and supportive materials do not demonstrate the Supplier will be able to comply with the Mandatory Requirements, the Agency may reject the Proposal.

4.2.1 Software must be substantially functional and use demonstrated no later than 30 days after signing of the contract.

Yes ☐ No ☐ Explain.

4.2.2 Training must be scheduled, but not necessarily conducted, within 30 days after signing of the contract.

Yes ☐ No ☐ Explain.

4.2.3 Software must be ADA compliant

See Universal Design and Section 508 of the U.S. Rehabilitation Act of 1973 - The solution should employ principals of Universal Design to the greatest extent possible. Universal Design is the design of products and environments to be usable by all people of all ages and abilities without the need for adaptation. It is preferred that the selected solution be compliant or will soon be compliant with Section 508 of the U.S. Rehabilitation Act of 1973, as amended (29 U.S.C. 794d) to remove barriers for persons with disabilities. Reference: http://www.access-board.gov/sec508/guide/index.htm . Bidder shall discuss in its proposal if and how its solution complies with or goes further than Section 508 in making the application accessible to persons with disabilities.

4.3 Mandatory Scored Technical Requirements

All items listed below are Mandatory Scored Technical Requirements. All requirements must be met; they will be evaluated and scored by the evaluation committee in accordance with Section 5. Proposals that do not have a minimum score of 420 on these requirements will be rejected. Please describe how your solution will incorporate the requirements below in Supplement 13.

4.3.1 Software Requirements

The Iowa Office of the State Long-Term Care Ombudsman/Iowa Department on Aging is seeking proposals for a software program to serve the state office and local ombudsman programs.

Iowa staff includes the state long-term care ombudsman and an ombudsman assistant in the state office and eight local ombudsmen, all of whom are state employees.

We are searching for a program that encompasses, at a minimum, the following items.

4.3.1.1 Program Activities & Narratives

Allows efficient, user friendly access to enter all program activities and narratives including at a minimum: number of instances, time spent, name, phone number and email address for caller, facility if appropriate, date started, and date completed (items not completed must appear on a pending activities report). It is preferred that Iowa be able to add program activities to tie in with NORS mandated activities. (example: consultations to a provider provided while in a facility will tie in with consultations to providers)

a. Training for local ombudsmen or volunteers including fields to enter topic and number of trainees.
b. Training for facility staff including fields to enter topic and number of attendees.
c. Technical assistance for local ombudsmen or volunteers including fields to enter caller name, address, phone, email, volunteer or paid staff, date of assistance.
d. Complaint related visits.
e. Non-complaint related visits.
f. Information and consultations to individuals.
g. Consultations to providers.
h. Participation in facility surveys.
i. Resident Councils.

j. Family Councils.
k. Community Education.
l. Monitoring/Work on Laws.
m. Media contacts.
n. Other (driving time).

4.3.1.2 Program Cases

Allows efficient, user friendly access to enter cases, including:

a. Unique identifying case number.
b. Resident name, facility, phone, email, age, gender and payment source.
c. Complainant name, address, phone, email and relationship (ability to add multiple complainants is preferred).
d. Facility name, owner, address, phone, and employee assigned, (when the facility name is entered, the rest of the facility information must populate).
e. Intake area must include a place to enter time spent on the intake. The time must be added to the total time spent on a case.
f. Narratives that appear/print in date order with most recent first.
g. Individual narrative time.
h. Work on each case is totaled on each case.
i. Complaint codes and dispositions according to AoA requirements.
j. Date case opened, review date, review complete, date closed.
k. Ability to copy and paste documents into the narrative or the ability to attach and print documents-formats include but are not limited to jpeg, gif, pdf, tif, Microsoft Word and Excel.
l. Inactive or previous employees do not appear on list of active users. (When selecting users to include in a report, all previous and inactive users currently appear. List must include only current users.)

4.3.1.3 Tables

a. Residents-when a resident has a complaint in a facility, then moves to another facility, must have the ability to keep original resident data intact and enter current facility data to the new case.
b. Complainants.
c. Facilities.
d. Owners.
e. Topics for training, including user ability to add additional topics.
f. Consultations topics including user ability to add additional topics.
g. System administrator functions.
h. Staff and volunteer information.

4.3.1.4 Reports

Reports that populate accurately and the ability to customize reports based on the needs of the Iowa ombudsman program. Customized reports may include, but not be limited to diagnoses, perpetrators, unduplicated count of residents or callers served, number of facilities and number of beds, facility license type, corporation, profit or not for profit facilities, number of complaint and non-complaint related visits made to an unduplicated number of facilities.

a. All data entered into the system can be printed out in at least one report including diagnoses or perpetrators.
b. Reports can be sorted or filtered by all data included in the report.
c. Real time, accurate reports.
d. Ability to print preview all reports.
e. Date printed appears on all reports.

4.3.1.5 Cross Referencing Data

Ability to associate cases and program activities. (Example, associate a complaint related visit to the appropriate case.)

4.3.1.6 Auto Features

All information must auto-tabulate and auto-count to populate the Administration on Aging (AoA) federal reporting system Ombudsman Reporting Tool (ORT).

4.3.1.7 Electronic Submission

Ability to submit NORS identified data electronically to the ORT system.

4.3.1.8 Identification Data for AoA

NORS data items must be required and identified on data entry screens.

4.3.1.9 Single Database

All programs must be in a single database.

4.3.1.10 Access Restriction

Ability for administrator to allow permission for local ombudsmen to access records based on assigned facility or location only. Ability to restrict local ombudsmen from accessing cases, program activities and all data outside the individual local ombudsman's assigned area or assigned facilities.

4.3.1.11 Font Size

Ability to change the font size on printed cases.

4.3.1.12 Data Ownership

Iowa Ombudsman Program is the owner of all data in the system. Upon termination of contract, company must be willing to provide all data to Iowa Ombudsman Program and remove data from company servers at no charge to the Iowa Department on Aging/Office of the State Long-Term Care Ombudsman.

4.3.1.13 Attachments

When printing a case or program activity, the user has the choice to print the attachment at the same time. When a case or program activity is printed, attachments are noted on the printed case.

4.3.1.14 Data Integrity

System must have capability to test reasonability of data input. Threshold should be user defined.

4.3.2 Technology Features

4.3.2.1 Web Access

Proposed system is to be web-based for access across the state of Iowa.

4.3.2.2 Availability

System must be substantially complete and currently in use by customers with similar needs.

4.3.2.3 Ease of Use

Interface for data input must be simple to use and easy to learn by individuals of all levels of technical ability.

4.3.2.4 Data Availability

Ability to provide, on request, either the raw data set(s) (back-up) or queries of data at no cost to the Iowa Department on Aging/Office of the State Long-Term Care Ombudsman.

4.3.2.5 Data Sorting

Ability to sort data by multiple columns or data sources at the same time. (Example: ability to sort data by user, date, and program activity.)

4.3.2.6 Data Tracking

The system must provide tracking of updates to system data. Example: date facility information (name or address change) is updated; date a program activity is updated.

4.3.2.7 File Types

The system must support multiple output types (pdf, web, print, etc.).

4.3.2.8 Data Export

The system must allow the ability to export all data selected in one action.

4.3.3 Customer Service - Warranty, Maintenance, and Training

Company is required to provide implementation services, training, warranty, maintenance and live technical support services available during business hours for their proposed solution.

4.3.4 User Support

User helpdesk must be available at minimum, between the hours of 8 a.m. to 5 p.m. central standard time Monday through Friday, with a response time of 24 hours.

4.4 Optional Requirements

All items listed below are optional, non-mandatory requirements. These requirements will be evaluated and scored.

4.4.1 Flexibility and the ability to change a program activity into a case and vice versa. Calls are received in the main office and the intake person enters information into the program. The program needs the flexibility to enter the information as a "task to be completed" (for example) be assigned to a specific local ombudsman, and the local ombudsman can then check a box to determine if the entry is a program activity or case.

4.4.2 Ability to print preview prior to printing grid or data sources so that column width may be adjusted to fit page.

4.4.3 Home screen (following log in screen) user flexibility. Ability for each individual user to customize what information appears on the home screen.

4.4.4 Program compatible with widely adopted operating systems and platforms.

4.4.5 Global search function. Ability to search for any information in the system through a global search function.

4.4.6 Capability to integrate with other State agency databases.

SECTION 5
EVALUATION AND SELECTION

5.1 Introduction

This section describes the evaluation process that will be used to determine which Proposal(s) provides the greatest benefit to the State. Agency will not necessarily award the Contract to the Contractor offering the lowest cost to the Agency. Instead, the Agency will award the Contract whose Responsive Proposal the Agency believes will provide the best value to the State.

5.2 Evaluation Committee

The Agency intends to conduct a comprehensive, fair, and impartial evaluation of Proposals received in response to this RFP. The Agency will use an evaluation committee to review and evaluate the Proposals.

5.3 Overview of Evaluation

All Technical Proposals will be first evaluated to determine if they comply with the Mandatory Requirements and Scored Mandatory Technical Requirements described in Section 4.1 and 4.2 and meet the minimum score as provided in Section 4.3. The evaluation committee will fully evaluate and score all Responsive Proposals submitted by Responsible Contractors in accordance with this Section. To be deemed a Responsible Contractor and a Responsive Proposal, the Proposal must:

- Answer "Yes" to all parts of Section 4.2 and include supportive materials as required to demonstrate the Contractor will be able to comply with the Mandatory Requirements in that section and obtain a minimum score of 420 for the Mandatory Scored Technical Requirements outlined in Section 4.
- After the Technical Proposals have been scored, the evaluation committee will open and score the Cost Proposals.

5.4 Evaluation Criteria

Evaluation of Proposals will be based on the following criteria, which are not listed in any particular order of importance. Maximum score possible: 1000 points possible.

5.4.1 Content and Technical Criteria – 700 points

- Abilities of proposed solution.
- Reporting capabilities.
- References and Contractor's professional experience and performance record.
- Contractor's proposed transition and work plans.
- Customer Service - Warranty, Maintenance, and Training
- Optional Items available.
- Degree of acceptance to terms and conditions
- User support

5.4.2 Cost – 300 points

BEST VALUE EVALUATION PROVISION

In this scoring method, the number of cost points possible for each vendor is proportional to the vendor's technical evaluation score. There is a two-step process for determining the vendor's cost proposal points:

1. The technical evaluation points received (numerator) is divided by the technical evaluation points possible (denominator) and the resulting number is multiplied by the maximum number of cost proposal points. The result is the total points possible for the Vendor in the cost evaluation.

Cost points possible for vendor =
technical evaluation points received x maximum number of cost proposal points
technical evaluation points possible

2. The lowest cost proposal received (numerator) is divided by the cost proposal being evaluated (denominator) and the resulting number is multiplied by the cost points possible for the vendor (as determined in step 1). The result is the cost proposal points to be awarded to the vendor.

Cost evaluation points awarded =
lowest cost proposal received x cost points possible for vendor
cost proposal being evaluated

Example: RFP has a maximum of 100 points for the technical evaluation and a maximum of 30 points for the cost evaluation.

Vendor A receives 80 points for its technical proposal and therefore can receive up to 80% of the points possible in the cost evaluation. Vendor A's cost proposal is $200.

Vendor B receives 50 points for the technical evaluation and therefore can receive up to 50% of the points possible in the cost evaluation. Vendor B's cost proposal is the lowest cost proposal at $100.

Scoring for Vendor A: (80/100) x 30= 24 maximum cost evaluation points
(100/200) x24= 12 cost evaluation points
Vendor A's total score is 80 +12= 92

Scoring for Vendor B: (50/100) x 30= 15 maximum cost evaluation points
(100/100) x 15= 15 cost proposal evaluation points
Vendor B's total score is 50 + 15= 65

Vendor A wins the award.

SECTION 6
CONTRACTURAL TERMS AND CONDITIONS

6.1 Contract Terms and Conditions

The Contract that the Agency expects to award as a result of this RFP shall comprise the specifications, terms and conditions of the RFP, written clarifications or changes made in accordance with the provisions of the RFP, the contract terms and conditions contained at the web-address indicated on the RFP cover sheet, the offer of the successful Contractor contained in its Proposal, and any other terms deemed necessary by the Agency. No objection or amendment by a Contractor to the provisions or terms and conditions of the RFP shall be incorporated into the Contract unless Agency has explicitly accepted the Contractor's objection or amendment in writing.

The contract terms and conditions contained at the web-address indicated on the RFP cover sheet will be incorporated into the Contract. The contract terms and conditions may be supplemented at the time of contract execution and are provided to enable Contractors to better evaluate the costs associated with the RFP requirements and the Contract. All costs associated with complying with these requirements should be included in any pricing quoted by the Contractor.

By submitting a Proposal, each Contractor acknowledges its acceptance of the RFP specifications and the contract terms and conditions without change except as otherwise expressly stated in its Proposal. If a Contractor takes exception to a provision, it must state the reason for the exception and set forth in its Proposal the specific RFP or contract language it proposes to include in place of the provision. Exceptions that materially change the contract terms and conditions or the requirements of the RFP may be deemed non-responsive by the Agency, in its sole discretion, resulting in possible rejection of the Proposal. The Agency reserves the right to either award a Contract(s) without further negotiation with the successful Contractor or to negotiate Contract terms with the successful Contractor if the best interests of the State would be served.

6.2 Contract Length

The term of the Contract will initially be for one year, with up to five renewal years available. The Agency shall have the sole option to renew the Contract upon the same or more favorable terms and conditions for up to the number of annual extensions identified on the RFP cover sheet.

6.3 Insurance

The Contract will require the successful Contractor to maintain insurance coverage(s) of the type and in the minimum amounts set forth below.

6.3.1 Contractor shall, at its sole expense, maintain in full force and effect, with insurance companies admitted to do business in the State of Iowa and acceptable to the Agency, insurance covering its work of the type and in amounts required by this Contract. Contractor's insurance shall, among other things, insure against any loss or damage resulting from or related to Contractor's performance of this Contract regardless of the date the claim is filed or expiration of the policy. All insurance policies required by this Contract shall: (i) be subject to the approval of the Agency; (ii) remain in full force

and effect for the entire term of this Contract; and (iii) not be canceled, reduced or changed without the Agency's prior written consent. The State of Iowa and the Agency shall be named as additional insureds on all such policies, and all such policies shall include the following endorsement: "It is hereby agreed and understood that the State of Iowa and the Iowa Department of Administrative Services are named as additional insured, and that the coverage afforded to the State of Iowa and the Iowa Department of Administrative Services under this policy shall be primary insurance. If the State of Iowa or the Iowa Department of Administrative Services has other insurance which is applicable to a loss, such other insurance shall be on an excess, secondary or contingent basis. The amount of the insurer's liability under this policy shall not be reduced by the existence of such other insurance." Unless otherwise requested by the Agency, Contractor shall cause to be issued insurance policies with the coverages set forth below:

6.3.2 Type of Insurance

Type of Insurance	**LIMIT**	**AMOUNT**
General Liability (including contractual liability) written on an occurrence basis	General Aggregate Products – Comp/Op Aggregate Personal injury Each Occurrence	$2 million $1 Million $1 Million $1 Million
Automobile Liability (including contractual liability) written on an occurrence basis	Combined single limit	$1 Million
Excess Liability, Umbrella Form	Each Occurrence Aggregate	$1 Million $1 Million
Errors and Omissions Insurance	Each Occurrence	$1 Million
Property Damage	Each Occurrence Aggregate	$1 Million $1 Million
Workers Compensation and Employer Liability	As Required by Iowa law	As required by Iowa law

6.3.3 Claims Provision

All insurance policies required by this Agreement must provide coverage on an "occurrence basis" for all claims arising from activities occurring during the term of the policy regardless of the date the claim is filed or expiration of the policy.

6.3.4 Certificates of Coverage

At the time of execution of this Contract, Contractor shall deliver to the Agency certificates of insurance certifying the types and the amounts of coverage, certifying that said insurance is in force before the Contractor starts work, certifying that said insurance applies to, among other things, the work, activities, products and liability of the Contractor related to this Contract, certifying that the State of Iowa and the Iowa Department of Administrative Services are named as additional insureds on the

policies of insurance by endorsement as required herein, and certifying that no cancellation or modification of the insurance will be made without at least thirty (30) days prior written notice to the Agency. All certificates of insurance shall be subject to approval by the Agency. The Contractor shall simultaneously with the delivery of the certificates deliver to the Agency one duplicate original of each insurance policy.

6.3.5 Liability of Contractor

Acceptance of the insurance certificates by the Agency shall not act to relieve Contractor of any obligation under this Contract. It shall be the responsibility of Contractor to keep the respective insurance policies and coverages current and in force during the life of this Contract. Contractor shall be responsible for all premiums, deductibles and for any inadequacy, absence or limitation of coverage, and the Contractor shall have no claim or other recourse against the State or the Agency for any costs or loss attributable to any of the foregoing, all of which shall be borne solely by the Contractor. Notwithstanding any other provision of this Contract, Contractor shall be fully responsible and liable for meeting and fulfilling all of its obligations under Section 6 of this Contract.

6.3.6 Waiver of Subrogation Rights

Contractor shall obtain a waiver of any subrogation rights that any of its insurance carriers might have against the Agency or the State. The waiver of subrogation rights shall be indicated on the certificates of insurance coverage supplied to the Agency.

6.3.7 Filing of Claims

In the event either the Agency or the State suffers a loss and is unable to file a claim under any policy of insurance required under this Contract, the Contractor shall, at the Agency's request, immediately file a proper claim under such policy. Contractor will provide the Agency with proof of filing of any such claim and keep the Agency fully informed about the status of the claim. In addition, Contractor agrees to use its best efforts to pursue any such claim, to provide information and documentation requested by any insurer providing insurance required hereunder and to cooperate with the Agency and the State. Contractor shall pay to the Agency and the State any insurance proceeds or payments it receives in connection with any such claim immediately upon Contractor's receipt of such proceeds or payments.

6.3.8 Proceeds

In the event the Agency or the State suffers a loss that may be covered under any of the insurance policies required under Section 6, neither the Contractor nor any subsidiary or affiliate thereof shall have any right to receive or recover any payments or proceeds that may be made or payable under such policies until the Agency and/or the State have fully recovered any losses, damages or expenses sustained or incurred by it (subject to applicable policy limits), and Contractor hereby assigns to the Agency and the State all of its rights in and to any and all payments and proceeds that may be made or payable under each policy of insurance required under this Contract.

Attachment # 1
Certification Letter
Alterations to this document are prohibited, see section 2.12.14

[Date]_____

Laurie Hoing, CPPB, Issuing Officer
Iowa Department of Administrative Services
1305 E. Walnut
Des Moines, IA 50319

Re: Request for Proposal Number RFP1112297290
PROPOSAL CERTIFICATIONS

Dear Laurie:

I certify that the contents of the Proposal submitted on behalf of **[Name of Contractor]** _____ in response to Iowa Department of Administrative Services for Request for Proposal Number RFP1112297290 for Ombudsman Case Management System are true and accurate. I also certify that Contractor has not knowingly made any false statements in its Proposal.

Certification of Independence

I certify that I am a representative of Contractor expressly authorized to make the following certifications in behalf of Contractor. By submitting a Proposal in response to the RFP, I certify in behalf of the Contractor the following:

1. The Proposal has been developed independently, without consultation, communication or agreement with any employee or consultant to the Agency or with any person serving as a member of the evaluation committee.

2. The Proposal has been developed independently, without consultation, communication or agreement with any other contractor or parties for the purpose of restricting competition.

3. Unless otherwise required by law, the information found in the Proposal has not been and will not be knowingly disclosed, directly or indirectly prior to Agency's issuance of the Notice of Intent to Award the contract.

4. No attempt has been made or will be made by Contractor to induce any other contractor to submit or not to submit a Proposal for the purpose of restricting competition.

5. No relationship exists or will exist during the contract period between Contractor and the Agency or any other State agency that interferes with fair competition or constitutes a conflict of interest.

Certification Regarding Debarment

6. I certify that, to the best of my knowledge, neither Contractor nor any of its principals: (a) are presently or have been debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from covered transactions by a Federal Agency or State Agency; (b) have within a three year period preceding this Proposal been convicted of, or had a civil judgment rendered against them for commission of fraud, a criminal offense in connection with obtaining, attempting to obtain, or performing a public (federal, state, or local) transaction or contract under a public transaction, violation of antitrust statutes; commission of embezzlement, theft, forgery, falsification or destruction of records, making false statements, or receiving stolen property; (c) are presently indicted for or criminally or civilly charged by a

government entity (federal, state, or local) with the commission of any of the offenses enumerated in (b) of this certification; and (d) have not within a three year period preceding this Proposal had one or more public transactions (federal, state, or local) terminated for cause.

This certification is a material representation of fact upon which the Agency has relied upon when this transaction was entered into. If it is later determined that Contractor knowingly rendered an erroneous certification, in addition to other remedies available, the Agency may pursue available remedies including suspension, debarment, or termination of the contract.

Certification Regarding Registration, Collection, and Remission of Sales and Use Tax

7. Pursuant to *Iowa Code sections 423.2(10) and 423.5(8) (2009)* a retailer in Iowa or a retailer maintaining a business in Iowa that enters into a contract with a state agency must register, collect, and remit Iowa sales tax and Iowa use tax levied under *Iowa Code chapter 423* on all sales of tangible personal property and enumerated services. The Act also requires Contractors to certify their compliance with sales tax registration, collection, and remission requirements and provides potential consequences if the certification is false or fraudulent.

   By submitting a Proposal in response to the (RFP), the Contractor certifies the following: (check the applicable box)

☐ Contractor is registered with the Iowa Department of Revenue, collects, and remits Iowa sales and use taxes as required by *Iowa Code Chapter 432*; or

☐ Contractor is not a "retailer" or a "retailer maintaining a place of business in this state" as those terms are defined in *Iowa Code subsections 423.1(42) and (43)*.

Contractor also acknowledges that the Agency may declare the Contractor's Proposal or resulting contract void if the above certification is false. The Contractor also understands that fraudulent certification may result in the Agency or its representative filing for damages for breach of contract in additional to other remedies available to Agency.

Sincerely,

_____

[Name and Title]

Attachment #2
Authorization to Release Information Letter
Alterations to this document are prohibited, see section 2.12.14

[Date]_____

Laurie Hoing, CPPB, Issuing Officer
Iowa Department of Administrative Services
1305 E. Walnut
Des Moines, IA 50319

Re: Request for Proposal Number RFP1112297290
AUTHORIZATION TO RELEASE INFORMATION

Dear Laurie:

[Name of Contractor]_____ hereby authorizes the Iowa Department of Administrative Services ("Agency") or a member of the Evaluation Committee to obtain information regarding its performance on other contracts, agreements or other business arrangements, its business reputation, and any other matter pertinent to evaluation and the selection of a successful Contractor in response to Request for Proposal (RFP) Number RFP111229790**.**

The Contractor acknowledges that it may not agree with the information and opinions given by such person or entity in response to a reference request. The Contractor acknowledges that the information and opinions given by such person or entity may hurt its chances to receive contract awards from the State or may otherwise hurt its reputation or operations. The Contractor is willing to take that risk.

The Contractor hereby releases, acquits and forever discharges the State of Iowa, the Agency, their officers, directors, employees and agents from any and all liability whatsoever, including all claims, demands and causes of action of every nature and kind affecting the undersigned that it may have or ever claim to have relating to information, data, opinions, and references obtained by the Agency or the Evaluation Committee in the evaluation and selection of a successful Contractor in response to the RFP.

The Contractor authorizes representatives of the Agency or the Evaluation Committee to contact any and all of the persons, entities, and references which are, directly or indirectly, listed, submitted, or referenced in the Contractor's Proposal submitted in response to RFP.

The Contractor further authorizes any and all persons and entities to provide information, data, and opinions with regard to its performance under any contract, agreement, or other business arrangement, its ability to perform, business reputation, and any other matter pertinent to the evaluation of the Contractor's Proposal. The Contractor hereby releases, acquits and forever discharges any such person or entity and their officers, directors, employees and agents from any and all liability whatsoever, including all claims, demands and causes of action of every nature and kind affecting the Contractor that it may have or ever claim to have relating to information, data, opinions, and references supplied to the Agency or the Evaluation Committee in the evaluation and selection of a successful Contractor in response to RFP.

Sincerely,

_____
[Printed Name of Contractor Organization]

_____ _____
[Name and Title of Authorized Representative] **Date**

Attachment # 3
Vendor Requirement Check List

RFP REFERENCE SECTION	RESPONSE INCLUDED		LOCATION OF RESPONSE
	Yes	No	
3. One (1) original, one (1) copy of the Bid Proposal and One (1) electronic copy on CD.			
3. One (1) Public Copy with Confidential Information Excised (optional)			
3. Transmittal Letter – Supplement 1			
3. Executive Summary – Supplement 2			
3. Specifications and Technical Requirements – Supplement 3			
3. Contractor Background Information – Supplement 4			
3. Experience - Supplement 5			
3. Financial Information - Supplement 6			
3. Terminations – Supplement 7			
3. Criminal History and Background Investigation – Supplement 8			
3. Acceptance of Terms and Conditions – Supplement 9			
3. Certification Letter – Supplement 10			
3. Authorization to Release Information – Supplement 11			
3. Firm Proposal Terms – Supplement 12			
3. Proposed Solution – Supplement 13			
3. Implementation Plan – Supplement 14			
4. Mandatory Requirements			
4. Scored Mandatory Requirements			
4. Optional Requirements			

Attachment 4
Cost Proposal

Contractor's Cost Proposal shall include an all-inclusive, itemized, total cost in U.S. Dollars (including all travel, expenses, etc. in prices). All pricing to be FOB Destination, freight cost and all expenses included; and based on Net 60 Days Payment Terms. The following template is required. Please use additional pages to provide any additional narrative support for the costing information.

Fees	Contract	Year 2	Year 3	Year 4	Year 5	Year 6	Totals
License(s)							
Seats							
Migration							
Customization							
Training							
Maintenance/ Renewals							
User Support							
Other costs If applicable							
Totals							